

particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.” *Anderson v. Owens-Corning Fiberglas Corp.*, supra, 53 Cal.3d 987. “Drug manufacturers need only warn of risks that are *actually known or reasonably scientifically knowable*.” *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Complaint fails to allege the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant’s duty to warn patients and whether the risks were actually or reasonably known to Novo at the time of manufacture and distribution.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that “[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest...and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” Here, the First and Fifth Causes of Action are the only causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer as to the Seventh Cause of Action is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc.

In summary, the Demurrer is **SUSTAINED** without leave to amend as to the First Cause of Action; **SUSTAINED** with leave to amend as to the Fifth Cause of Action regarding a duty to warn patients and whether the risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution; and **SUSTAINED** with leave to amend as to the Seventh Cause of Action. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order. Defendant is to prepare an Order consistent with the Court’s ruling. The parties are required to appear on today’s calendar to discuss the present case 210078, Shasta County case 209540, and whether Plaintiff intends to dismiss one of the actions as they appear to be identical.

KAPLANIS VS. SOUTHWICK, ET AL.

CASE NUMBER: 25CV-0208011

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on May 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff Patricia Kaplanis, in pro per, for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

NOLIND VS. DAVIE, ET AL.

CASE NUMBER: 25CV-0206940

This matter is on calendar for hearing on Plaintiff’s Motion to Compel Further Responses to discovery. On June 12, 2026, the Court received a Notice of Withdrawal of the Motion to Compel Further Responses to discovery and a Notice of Settlement. The matter is dropped from calendar and no appearances are necessary.